

expressly on Plaintiff paying the reasonable fees and costs Defendant incurred in preparing and filing the motion for judgment on the pleadings.

The matter of attorneys fees and costs is continued to August 13, 2026 at 8:30. Defendant's counsel to file a declaration describing the fees and costs incurred by July 27, 2026. Any opposition to the fees and costs (which will be reviewed critically) shall be filed by August 3, 2026. If the parties meet and confer and resolve the fees and costs, Plaintiff will prepare a stipulation and order vacating the follow up hearing. Plaintiff shall have 30 days to pay those fees and costs, or this order withdrawing the deemed admissions will be vacated, and Defendant's motion for judgment on the pleadings reset for hearing on an expedited basis.

With this ruling, the court takes Defendant's motion for judgment on the pleadings off calendar, as moot at present.

ERIONA BOLER VS. DR. JEFFREY A. SALADIN COMPANY, INC.
Case No. CU24-09674

Plaintiff's Motion for Approval of PAGA Settlement

Tentative Ruling:

Parties to appear.

TARA CRUZ v. CARVANA, LLC et al.
Case No. CU25-05498

Plaintiff's Motion to Lift Stay

TENTATIVE RULING

Plaintiff TARA CRUZ moves to lift the stay ordered in this case on January 21, 2026 in conjunction with this court's order that her claims against Defendants CARVANA, LLC, BRIDGECREST ACCEPTANCE CORPORATION, and DEVELOPERS SURETY & INDEMNITY COMPANY (together "Respondents") be sent to arbitration pursuant to an arbitration agreement between the parties. Plaintiff contends that Respondents failed to timely pay arbitration initiation fees.

Forfeiture of Arbitration for Nonpayment of Fees. Code of Civil Procedure section 1281.97 states that in situations where the party that drafted an arbitration agreement is required to pay fees to initiate arbitration that party forfeits its right to arbitration if said initiation fees are not paid within thirty days of their due date. Likewise, Code of Civil Procedure section 1281.98 states that a drafting party required to pay fees that arise during the pendency of an arbitration forfeits its right to continued arbitration if said continuation fees are not paid within thirty days of their due date. The parties here do not contest that Respondents were required to pay initiation fees under the arbitration agreement with Plaintiff and failed to timely pay the fees for the arbitration Plaintiff